



Bylaws

Last confirmed by the membership on 30 October 2022.

Bylaws of the University of Toronto Students' Union

The University of Toronto Students' Union (UTSU) is a not-for-profit organization incorporated under the Canada Not-for-profit Corporations Act (CNCA). The UTSU functions autonomously from the University of Toronto, and acts as the primary student government for over 38,000 undergraduate students at the University of Toronto's St. George Campus.

You can learn more about how the UTSU operates at utsu.ca/governance



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	AREA	Bylaws		
	OWNERS	Board of Directors and Membership		
	AFFECTS	Entire Organization, Subsidiaries		
INTRODUCED		3 June 1977	REVISION	30-10-22
AMENDMENT HISTORY		• AGM 30-10-22 Revision approved by the members. • BOD 28-08-22 Revision approved by Board of Directors. • BOD 07-07-22 Reviewed Bylaws to certify as accurate. • SGM 16-02-22 Ratified changes. • BOD 28-11-21 Amended entire document in omnibus. • AGM 08-10-21 Ratified changes. Did not approve ERC appendix. ERC rendered ineffective. • BOD 29-08-21 Amended X (4)+(7); XV; Mission Statement • BOD 30-04-21 Amended IV, VI, X, XV, XVI • BOD 10-04-21 Amended VI • SGM 27-03-21 Ratified changes. • BOD 27-02-21 Amended I, III through XII, XV, XVII • AGM 23-12-20 Ratified changes. • BOD 30-11-20 Amended III • BOD 24-08-20 Amended I, VI, VIII, IX, X + layout overhaul. Information limited prior to May 2020. This is not part of the Bylaws, and only attempts to give an overview of historical bylaw amendments and revisions.		

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Article 1 Members

Section 1. Regular Membership.

Every currently registered student of the University of Toronto, St. George, whom the University of Toronto classifies as a member of the UTSU shall be a member of the UTSU, provided that they pay the membership fee and all mandatory fees of the UTSU as set out by the Board of Directors.

Section 2. Membership Fee.

The membership fee shall be \$21.07 per session. The membership fee shall be adjusted annually by the Consumer Price Index (CPI). Only a two-thirds (2/3) vote of the Board of Directors or a majority of those present and voting at a membership meeting shall increase the membership fee more than the Consumer Price Index.

Section 2.1. Typographical.

If the membership fee is adjusted by the Consumer Price Index or by the Board of Directors, the exact membership fee amount as provided in Article 1, Section 2 shall be automatically amended annually by inserting the new membership fee amount - said adjustment shall not require a bylaws amendment.

Section 3. Honourary Membership.

Upon a vote of two-thirds of the Board of Directors at a regular or special meeting, honorary membership can be conferred onto any person who has rendered extraordinary service to the UTSU, the University of Toronto, or any other respective area that has benefitted the UTSU. An honorary member shall have none of the privileges of regular membership.

Section 4. Rights of Members.

The following rights shall be limited to members: 1. The right to vote at general meetings; 2. The right to vote in elections and referenda, as permitted by the Bylaws; 3. The right to vote electronically in all elections and referenda, using one's personal electronic device; 4. The right to seek elected office, as permitted by the Bylaws; 4.1 No person who is a member solely by virtue of Bylaw II (1)(e) and who is not otherwise enrolled in an undergraduate program at the University of Toronto, or a degree program at the Toronto School of Theology, may seek elected office; 5. The right to nominate candidates for elected office, as permitted by the Bylaws; 6. The right to initiate and sign petitions, as permitted by the Bylaws.

Section 4.1. Amendment Formula.

No part of Article 1, Section 4. Rights of Members may be amended other than by a two-thirds (2/3) vote of members voting at a general meeting at which at least 10% of members are present, either in person or by proxy.

Section 5. Cessation of Membership.

Membership shall cease when a member 1. withdraws from their studies at the University of Toronto; 2. graduates from the University of Toronto; 3.

the University of Toronto no longer classifies the member as a member of the UTSU, or 4. dies.

Article 2 Officers

Section 1. **Officers.**

There shall be three (3) officers of the UTSU. Two shall be elected by the membership, and one (1) shall be appointed by the Executive Committee.

Section 1.1. **Elected Officers.**

The elected officers shall be the President and the Vice President Finance and Operations.

Section 1.2. **Appointed Officer.**

The appointed officer shall be the highest-ranking staff member, as determined by the Executive Committee.

Section 2. **Election and Term of Office.**

Section 2.1. **Elected Officers.**

The elected officers shall be elected by ballot annually during the Annual Election and shall serve for one (1) year and until their successors are elected, and their term of office shall be from May 1 until April 30.

Section 2.1.1. **Term Limits.**

The elected officers shall serve no more than two (2) terms in the same office.

Section 2.2. **Appointed Officer.**

The Executive Committee shall appoint the appointed officer, and the Executive Committee shall determine their term of employment.

Section 3. **Qualifications of Officers.**

Section 3.1. **Elected Officers.**

Only regular members who are: at least eighteen (18) years old; not disqualified from holding a position due to a provision of the bylaws; legally permitted to work in Canada; not been found incapable by any court in Canada or elsewhere; and not bankrupt; shall be eligible for nomination or election to office.

Section 3.2. **Appointed Officer.**

An individual that is: at least eighteen (18) years old; legally permitted to work in Canada; not been found incapable by any court in Canada or elsewhere; and not bankrupt; shall be eligible for appointment to office.

Section 4. **Vacancy of Office.**

Section 4.1. **Presidency.**

If there is a vacancy in the office of the President created by death, resignation, ineligibility, or incapacity as determined by the Board of

Directors, the Vice President Finance and Operations shall immediately assume the office of the President for the balance of the term. If there is no Vice President Finance and Operations, the Board of Directors shall fill the vacancy by appointment for the balance of the term.

Section 4.2. Vice Presidency.

A vacancy in the office of the Vice President Finance and Operations created by death, resignation, ineligibility, or incapacity as determined by the Board of Directors shall be filled by the Board of Directors by appointment for the balance of the term.

Section 4.3. Appointed Officer.

A vacancy in the office of the Appointed Officer created by death, resignation, termination, layoff, ineligibility, incapacity, or any other means as determined by the Executive Committee shall be filled by the Executive Committee.

Section 5. Duties of the President.

The President shall serve as the Chief Executive Officer (CEO) of the UTSU. The President shall chair the Executive Committee, unless the President delegates their presiding duties, and shall lead the actions of the Executive. The President shall be the official representative, spokesperson, and media liaison of the UTSU. The President shall be an ex-officio member of the Board of Directors. The President shall be an ex-officio member of all committees. The President shall be a signing officer of the UTSU. The President shall have the authority to bind the UTSU into contracts, agreements, and other obligations, along with one (1) other signing officer. The President shall be a full-time employee of the UTSU.

Section 6. Duties of the Vice President Finance and Operations.

The Vice President Finance and Operations, when authorized by the President or the Board of Directors, shall temporarily act as the interim President when the President is temporarily absent or incapacitated. The Vice President Finance and Operations shall serve as the Chief Financial Officer (CFO)/Treasurer of the UTSU. The Vice President Finance and Operations shall serve as the Chief Operating Officer (COO) of the UTSU. The Vice President Finance and Operations shall serve as the Secretary of the UTSU. The Vice President Finance and Operations shall be an ex-officio member of the Board of Directors. The Vice President Finance and Operations shall be an ex-officio member of all committees. The Vice President Finance and Operations shall be a signing officer of the UTSU. The Vice President Finance and Operations shall have the authority to bind the UTSU into contracts, agreements, and other obligations, along with one (1) other signing officer. The Vice President Finance and Operations shall be a full-time employee of the UTSU.

Section 7. Duties of the Appointed Officer.

The Appointed Officer shall directly report to and be responsible to the President and Vice President Finance and Operations. The Appointed Officer shall act as the Chief Administrative Officer of the UTSU. The Appointed Officer shall manage both the unionized and non-unionized

staff. The Appointed Officer shall act as a liaison between the staff and the Executive Committee. The Appointed Officer shall receive and administer all day-to-day funds of the UTSU and ensure that all accounting records are maintained. The Appointed Officer shall be a signing officer of the UTSU. The Appointed Officer shall have the authority to bind the UTSU into contracts, agreements, and other obligations, along with one (1) other signing officer. The Appointed Officer shall be a full-time employee of the UTSU.

Article 3 The Board of Directors

Section 1. Composition.

The Board of Directors shall be composed of 12 Directors, 10 of which shall be directors-at-large. The remaining two (2) shall be the President and the Vice President Finance and Operations, who are both ex-officio members of the Board of Directors.

Section 2. Qualifications of Directors-at-Large.

Only regular members who are: at least eighteen (18) years old; not disqualified from holding a position due to a provision of the bylaws; not been found incapable by any court in Canada or elsewhere; not a Senator; and not bankrupt; shall be eligible for nomination or election to office.

Section 3. Elections and Term of Office.

Section 3.1. Directors-at-Large.

The 10 Directors-at-large shall be elected by ballot annually during the Annual Election and shall serve for one (1) year and until their successors are elected, and their term of office shall be from May 1 until April 30.

Section 3.2. Ex-Officio Members.

The Election and Term of Office of the Ex-Officio Members are contained in Article 2, Section 2.1.

Section 4. Power and Authority.

The Board of Directors shall have full power and authority over the affairs of the UTSU between Membership Meetings except as otherwise provided in these bylaws. The Board of Directors shall adopt special rules of order, policies, and standing rules to govern its proceedings and the affairs of UTSU. The Board of Directors shall have the authority to approve the annual budget of UTSU. The Board of Directors shall have all of those duties and powers as set forth in the parliamentary authority of the UTSU and those duties and powers set forth under the statutes of Canada.

Section 5. Regular Meetings.

The Regular Meetings of the Board of Directors shall be held monthly; the Board of Directors shall set the places, dates, and times for all of its meetings. If no regular meeting has been set by the Board, the President shall set the place, date, and time of the meeting. Notice of a regular

meeting shall be provided to all Directors at least 14 days prior to the meeting.

Section 6. Special Meetings.

Special meetings of the Board may be called by the President and shall be called upon the written request of three (3) directors. Notice of a special meeting shall be provided to all Directors at least 24 hours prior to the meeting. Notice may be waived by any board member before, during, or after the meeting – for notice to be waived the full membership of the Board of Directors shall waive their right to notice.

Section 7. Quorum.

A majority of the Board of Directors shall constitute a quorum.

Section 8. Proxy/Absentee Voting.

There shall be no proxy voting or absentee voting.

Section 9. Vacancy of Office.

Section 9.1. Directors-at-Large.

If there is a vacancy in the office of Director-at-Large created by death, resignation, ineligibility, or incapacity as determined by the Board of Directors, the Board of Directors shall fill the vacancy by appointment for the balance of the term.

Section 9.2. Ex-Officio Members.

Article 2, Section 4.1. and 4.2. shall provide for how Ex-Officio Member vacancies shall be filled.

Section 10. The Speaker.

A Speaker shall be appointed by the Board of Directors to act as the professional presiding officer for all regular and special Board Meetings. The Speaker shall be a credentialed and insured expert in the conduct of meetings and parliamentary procedure. The Speaker shall not be a member.

Article 4 Elections

Section 1. Annual Election.

Every year the UTSU membership shall have the right to vote for each elected executive committee member, including the President, all Vice Presidents and directors-at-large in the Annual Election.

Section 2. Time of Election.

The Annual Election shall be conducted annually between February 1 and March 31.

Section 3. Nomination.

For a candidate to be eligible to stand for election, they shall be nominated by at least 25 regular members who sign nomination papers

as provided for in the elections and referenda code. All candidates must provide verifiable proof of such nomination to the Elections and Referenda Committee. No candidate shall be nominated for more than one (1) position.

Section 4. Votes to Elect.

A plurality of the membership shall elect each executive committee member, including the President and all Vice Presidents. The ten (10) directors-at-large who receive the most votes shall be elected.

Section 4.1. Ties.

In the case of an election race resulting in a tie, the winner shall be determined by a coin flip between the candidates administered by the CRO. The results of the coin flip shall be included in the reports of the CRO and Elections and Referenda Committee.

Section 5. Acclamation.

In the event that the number of candidates is equal to or fewer than the number of positions to be elected, the candidates shall be declared elected by acclamation. No ballot vote shall be held for any acclaimed candidates.

Section 6. Method of Election.

The Annual Election shall be conducted using an electronic balloting platform that allows all members to vote anonymously and electronically. Each member shall be provided one (1) vote per contest.

Section 7. Election Period.

Notice of the nomination and election period shall be provided to the membership at least 14 days prior to the commencement of nominations.

Section 8. Voting Period.

The voting period shall be no shorter than 72 hours in length and no longer than 120 hours in length.

Section 9. Election Administration.

All elections shall be conducted by a Chief Returning Officer (CRO), who shall be a professional in the conduct of elections and not a member. The oversight of the Chief Returning Officer shall be the responsibility of the Elections and Referenda Committee.

Section 10. Slates, Parties, Cross-campaigning.

There shall be no slates, parties, cross-campaigning, or any other form of mutual organization between candidates seeking election as President, Vice President, or Director-at-large.

Section 11. Elections and Referenda Code.

There shall be an elections and referenda code that shall govern all procedures and regulations for all elections and referenda not prescribed

in these bylaws. Amendments to the elections and referenda code shall require a two-thirds (2/3) vote of the Board of Directors.

Article 5 Membership Meetings

Section 1. Regular Membership Meetings.

Annually, there shall be two (2) regular membership meetings: 1. in October, which shall be the annual general meeting (AGM); and 2. in April, which shall be the Spring General Meeting.

Section 1.1. Annual General Meeting.

The annual general meeting shall consider the following business: 1. Receiving financial statements and the Auditor's report; 2. appointing auditors; 3. considering amendments to the bylaws; 4. Receiving reports from the Executive Committee members; 5. receiving an address from the President; 6. member-submitted motions; and 7. any other business that is required by these bylaws, special rules of order, UTSU policies and all applicable and relevant law and legislation. At least 60 days' notice shall be given.

Section 1.2. Spring General Meeting.

The sole purpose of the Spring General Meeting shall be ratification of the election of Executives and Directors. The Elections and Referenda Committee shall present their report, along with the report of the Chief Returning Officer; contained in the committee's report shall be a recommendation to ratify the election results unless the Chief Returning Officer's report recommends that the results not be ratified. In the event that the election results to be ratified contain a number of successful candidates that is equal to or fewer than the number of positions to be elected, the candidates shall be declared elected by acclamation. At least 14 days' notice shall be given.

Section 2. Special Membership Meetings.

Special Membership Meetings may be called by a majority of the Board of Directors and shall be called upon the written request of at least 100 members of the association. The form of said written request shall be maintained by the Board of Directors. The purpose of the meeting shall be stated in the call to the meeting, and at least ten (10) days' notice shall be given.

Section 3. Quorum.

Section 3.1. Annual General Meeting.

The quorum for the Annual General Meeting shall be 50 members.

Section 3.2. Spring General Meeting.

The quorum for the Spring General Meeting shall be those present.

Section 3.3. Special Membership Meeting.

The quorum for a Special Membership Meeting shall be 100 members.

Section 4. Proxy/Absentee Voting.

There shall be no proxy voting or absentee voting.

Section 5. The Speaker.

A Speaker shall be appointed by the Board of Directors to act as the professional presiding officer for all regular and special Membership Meetings. The Speaker shall be a credentialed and insured expert in the conduct of meetings and parliamentary procedure. The Speaker shall not be a member.

Article 6 Electronic Meetings and Communication

Section 1. Meetings Held Electronically.

The Membership, Board of Directors, Senate, Executive Committee, committees, and subcommittees shall be authorized to meet through electronic means through the use of internet meeting services that support anonymous voting so long as all the members can participate synchronously during the meeting. These electronic meetings shall be subject to all rules adopted by the Board of Directors to govern them, which may include reasonable limitations on, and requirements for member participation. Any such rules adopted by the Board of Directors shall supersede any conflicting rules in the parliamentary authority, but may not otherwise conflict with or alter any rule or decision of the membership. An anonymous vote conducted through the designated internet service shall be deemed a ballot vote, fulfilling any requirement in the bylaws or rules that a vote be conducted by ballot.

Section 2. Communication.

All communication required in these bylaws, including meeting notices, may be sent electronically.

Article 7 Executive Committee and Administration

Section 1. Executive Committee.

The day-to-day operations of the UTSU shall be under the direction of the Executive Committee.

Section 1.1. Composition.

The Executive Committee shall be composed of the President, who shall serve as the chair of the Executive Committee, the Vice President Finance and Operations, who shall act as Vice Chair and preside in the absence of the President, and at least three (3) other Vice Presidents as per UTSU policy. The Appointed Officer or designate shall attend the Executive Committee meetings, and shall provide advisement to the Executive Committee as needed.

Section 1.2. Reporting Structure.

The Executive Committee members shall be accountable to, employed by, and report to the Board of Directors.

Section 1.3. Powers.

The Executive Committee shall have the following powers: 1. to authorize the reimbursement of the reasonable expenses incurred by Directors and officers of the UTSU in carrying out their duties; 2. to employ unionized and contractual staff in accordance with all relevant laws and collective agreements; 3. to expend funds of the Corporation in accordance with the budget as approved by the Board and establish procedures for the administration of UTSU funds; 4. to manage all legal issues as they arise, and to settle said issues upon approval of the Board of Directors; and 5. to manage the UTSU on behalf of the Board of Directors between meetings of the Board of Directors. The Executive Committee shall have all those powers and responsibilities as provided for in the parliamentary authority, special rules of order, policies, and standing rules.

Section 1.4. Management Committee.

The Management Committee shall be composed of the Officers. The Management Committee shall oversee all human resources and immediate operational concerns of the UTSU. The Management Committee shall be accountable to and report to the Executive Committee.

Article 8 Committees

Section 1. Standing Committees.

There shall be eight (8) standing committees: Clubs and Societies Committee, Elections and Referenda Committee, Finance Committee, Governance Committee, Member Services Committee, People and Culture Committee, Student Aid and Scholarships Committee, and the Student Commons Committee.

Section 1.1. Clubs and Societies Committee.

The committee is responsible for decisions pertaining to the UTSU's funding of student organizations at the University of Toronto, and is tasked with reviewing UTSU policies and practices surrounding clubs and societies.

Section 1.2. Elections and Referenda Committee.

The committee oversees all elections and referenda conducted by the UTSU, and is responsible for the organization's compliance with Article 4 of these Bylaws.

Section 1.3. Finance Committee.

The committee oversees the financial operations of the UTSU, and is responsible for reviewing its financial documents, processes, and policies.

Section 1.4. Governance Committee.

The committee oversees the governance of the UTSU, and is responsible for ensuring the organization's compliance with relevant laws and authorities affecting the UTSU. The committee is tasked with reviewing, amending, and receiving amendments to all governing documents of the UTSU.

Section 1.5. Member Services Committee.

The committee provides oversight and guidance regarding the programs and services that the UTSU provides to its members. The committee is responsible for reviewing and making recommendations regarding the policies and practices surrounding programs and services at the UTSU.

Section 1.6. People and Culture Committee

The committee shall review the performance of the Executive Committee members and report to the Board regarding said performance.

Section 1.7. Student Aid and Scholarships Committee.

The committee is responsible for decisions pertaining to direct financial support provided to individual UTSU members by the UTSU, and is tasked with reviewing UTSU policies and practices surrounding scholarships, bursaries, and other immediate forms of aid rendered by the UTSU.

Section 1.8. Student Commons Committee.

The committee is responsible for the management of the UTSU Student Commons building, as determined by any and all agreements made between the UTSU and the University of Toronto, and UTSU policy.

Section 1.9. Policy.

The UTSU Board of Directors may adopt policy empowering the standing committees and expanding their mandates.

Section 2. Membership of Standing Committees.

The Board shall appoint committees and their chairpersons at the first meeting of the Board of Directors following their election. All committees shall have a minimum of three (3) and a maximum of seven (7) voting members who shall be selected among the directors. The President and Vice President Finance and Operations shall be ex officio members of all committees. The Appointed Officer or designate shall attend to the meetings of Committees as needed, and shall provide advisement to Committees as needed.

Section 3. Term of Office.

The term of office shall begin upon appointment and conclude when a successor is appointed.

Section 4.

Vacancies.

Committee vacancies shall be filled by the Board by appointment for the balance of the term.

Section 5.

Special Committees.

Special committees may be created as necessary by the Board of Directors.

Article 9 The Senate

Section 1.

Mandate.

The Senate shall be the sole governance organ of the UTSU responsible for advising the Board of Directors about issues of student life and issues which affect certain constituencies of the University of Toronto community. The Senate shall have the sole right to recommend the consideration of an issue regarding student life or issues which affect certain constituencies of the University of Toronto community to the Board of Directors.

Section 2.

Composition.

The Senate shall be composed of the following members, who shall be referred to as Senators.:

Section 2.1.

Colleges.

3 UTSU members from each of the following: 1. Innis College, 2. New College, 3. St. Michael's College, 4. Trinity College, 5. University College, 6. Victoria College, and 7. Woodsworth College. (21 members)

Section 2.2.

First-Entry Professional Faculties.

2 UTSU members from each of the following: 1. Architecture and Visual Studies, 2. Kinesiology and Physical Education, 3. Music (6 members), and 3 UTSU members from Applied Science and Engineering. (3 members)

Section 2.3.

Second-Entry Professional Faculties.

1 UTSU members from each of the following: 1. Dentistry, 2. Law, 3. Medicine, 4. Nursing, 5. Pharmacy, and 6. the Toronto School of Theology. (6 members)

Section 2.4.

First Year Members.

4 UTSU members in their first year of study. (4 members)

Section 2.5.

Commuter.

2 UTSU members who are commuter students. (2 members)

Section 2.6.

Residence.

2 UTSU members who live in University of Toronto residence(s). (2 members)

Section 2.7. Mature Students and Student Parents.

2 UTSU members who are mature students, student parents, or live in University of Toronto housing. (2 members)

Section 2.8. International Students.

4 UTSU members who are international students. (4 members)

Section 2.9. First Generation Student.

1 UTSU member who is a first generation student i.e. the first member of their immediate family to be enrolled in a full-time undergraduate degree program. (1 member)

Section 2.10. Small and Specialized Programs.

1 UTSU member from each small and specialized program, as recognized by the Senate.

Section 2.11. Further Membership.

The Senate shall be empowered to increase further the membership of the Senate provided that the total number of positions, not inclusive of ex-officio members, does not exceed 75 and that all new Senate members are UTSU members.

Section 2.12. Executive Committee.

All Executive Committee members shall have the right to attend and debate during all Senate proceedings.

Section 3. Election and Vacancies of Senators.

The Inaugural Senate shall be elected by those present representing each of the aforementioned constituencies at an inaugural mass meeting. The Senate shall develop and maintain policy as to how succeeding Senators are elected. The Senate shall develop and maintain policy as to how the Senate shall appoint vacancies.

Section 4. Terms of Office.

Senators shall serve from appointment until resignation, ineligibility, or death and until their successor shall be appointed.

Section 5. Regular Meetings.

The Senate shall meet five (5) times annually, twice between September 1 and December 31, twice between January 1 and May 31, and once between June 1 and August 31. The Senate shall consider recommendations to the Board of Directors regarding issues of student life and issues which affect certain constituencies of the University of Toronto community, receive reports from executives, and receive presentations.

Section 6. Special Meetings.

Special Senate Meetings may be called by a majority of the Senate and shall be called upon the written request of at least ten (10) Senators.

Section 7. Presiding Officer.

A Speaker shall be appointed by the UTSU Board of Directors to act as the professional presiding officer for all regular and special Senate Meetings. The Speaker shall be a credentialed and insured expert in the conduct of meetings and parliamentary procedure. The Speaker shall not be a member.

Section 8. Quorum.

The quorum of the Senate shall be one-third of the Senate membership.

Section 9. Committees.

The Senate shall be empowered to appoint Senate Committees.

Section 10. Constitution, Special Rules, Standing Rules, and Policy.

The Senate shall have the authority to enact a Senate Constitution, Senate Special Rules, Senate Standing Rules, and Senate Policy as long as they do not conflict with the UTSU Bylaws, UTSU Special Rules, UTSU Parliamentary Authority, UTSU Standing Rules, or UTSU Policy.

Article 10 Discipline

Section 1. Discipline.

The Board of Directors shall be empowered by a ballot vote of two-thirds (2/3) of a majority of the entire membership of the Board of Directors to discipline a member. A Special Meeting of the Board shall be called for any discipline matter where the Integrity Commissioner renders a report. The Board may only discipline a member by: 1. issuing a reprimand; 2. suspending membership; or 3. expelling a member from the membership. All discipline meetings shall be held in Executive Session.

Section 1.1. Suspension.

The member may appear, present evidence, and be represented by an advocate at the meeting. The Integrity Commissioner shall prosecute the case on behalf of the UTSU. Notice of a proposed suspension shall be sent to all board members and to the member whose suspension is being considered. The notice shall be sent at least 21 days before the meeting is to convene. All suspended members shall not be eligible for election or appointment to any Executive position nor any position on the Board of Directors. All Executives who are removed from their position shall have their membership suspended automatically.

Section 1.2. Expulsion.

The member may appear, present evidence, and be represented by an advocate at the meeting. The Integrity Commissioner shall prosecute the case on behalf of the UTSU. Notice of a proposed expulsion shall be sent to all board members and to the member whose expulsion is being considered. The notice shall be sent at least 21 days before the meeting is to convene. All expelled members shall not be eligible for election or appointment to any Executive position nor any position on the Board of

Directors. All expelled members shall have none of the rights of regular membership.

Section 2. Integrity Commissioner.

The UTSU Board of Directors shall appoint an expert in the conduct of investigations and integrity, who is not a member, to 1. receive all complaints regarding member discipline; 2. determine if the complaint is meritorious; and if the complaint is meritorious, 3. investigate the complaint and render a report with specific recommendations to the Board of Directors. The Integrity Commissioner shall present their case during all disciplinary hearings.

Section 3. Labour and Employment Matters.

The labour and employment matters of the UTSU shall be governed by the Board of Directors and are not applicable to discipline; although, following a labour and employment matter being decided by the Board of Directors, the Board of Directors may file a discipline complaint.

Article 11 Parliamentary Authority and Suspension of Rules

Section 1. Parliamentary Authority.

The rules contained in the current edition of Robert's Rules of Order Newly Revised shall govern the UTSU in all cases to which they are applicable and in which they are not inconsistent with these bylaws and any special rules of order that the UTSU may adopt.

Section 2. Suspension of Rules.

Any rule in these Bylaws in the nature of a rule of order cannot be suspended unless the particular rule specifically provides for its own suspension.

Article 12 Autonomy

Section 1. Autonomy.

The UTSU shall not become a member of any organization from which the UTSU would not be able to withdraw via a vote of the Board of Directors. The UTSU shall not enter into any perpetual agreement that cannot be terminated by a vote of the Board of Directors.

Section 1.1. Time.

Article 12 shall not apply to actions taken prior to 30 October 2017.

Section 2. Amendment Formula.

No part of Article 12 may be amended other than by a three-quarters majority ($\frac{3}{4}$) of members voting at a general meeting at which at least 10% of members are present, either in person or by proxy.

Article 13 Amendment

Section 1.

Amendment With Notice Prior to a General Meeting.

The Articles of Incorporation and these bylaws may be amended, and any other action defined as a fundamental transaction by the applicable law of the jurisdiction in which the UTSU is incorporated may be authorized, at any General Meeting by a two-thirds vote, provided that the amendment, 1. has been submitted by the Governance Committee, Board of Directors, the Senate, a standing or special committee of the Board, or at least 30 members; 2. if originated by any group other than the Governance committee, it must be submitted to said committee at least 90 days prior to a General Meeting; and 3. has been sent by electronic communication to the members no later than 30 days prior to a General Meeting where changes are to be considered. The Committee shall provide their recommendation regarding the adoption or rejection of any amendment. The UTSU shall retain the service of a credentialed and insured expert in bylaws and parliamentary procedure, who is not a member, to advise the UTSU as to the advisability of any proposed amendments.

Section 2.

Revision.

These bylaws shall be revised only upon authorization by a General Meeting.

Section 2.1.

Preparation of Revision.

Preparing and presenting an authorized revision shall be the duty of the Governance committee.

Section 2.2.

Notice of Proposed Revision.

The proposed revision shall be sent to the members no later than 120 days prior to the General Meeting at which the proposed revision is to be considered.

Section 2.3.

No Amendment to Existing Bylaws.

If a revision is authorized, there shall be no other amendments proposed to the existing Bylaws.

Section 2.4.

Expert Advisement.

The UTSU shall retain the service of a credentialed and insured expert in bylaws and parliamentary procedure, who is not a UTSU member, to advise the UTSU as to the advisability of any proposed amendments/the entire revision.

Provisions Relating to Transition

- I. Article 3, Section 1 shall not apply to the current elected Board of Directors. Upon the commencement of the next Board of Directors' term, May 1 2023, Article 3, Section 1 shall apply.
- II. The following sentence of Article 9, Section 3, "The Inaugural Senate shall be elected by those present representing each of the aforementioned constituencies at an inaugural mass meeting." shall be struck from the Bylaws upon the adjournment of the first meeting of the Senate where Senators are elected.